

24SMCV06039 24SMCV06039

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F08%2F2026

Source SHA-256: 2ba8f41a84eb3373b9ed5bb7d06149388faf1d4164efe334848d033e69564ed0

Case Number: 24SMCV06039 Hearing Date: September 8, 2026 Dept: N

TENTATIVE ORDER

Defendant William Christopher Swano's Motion to Compel Plaintiff Carolina Berenice Lopez's Deposition Answers and Further Deposition; Request for Monetary Sanctions in the Amount of \$2,255.00 Against Plaintiff and Counsel of Record, Jointly and Severally is GRANTED in part and DENIED in part as follows.

The request to compel Plaintiff Carolina Berenice Lopez to appear for deposition and answer Question Nos. 1 through 4, and 6 through 8 in Defendant William Christopher Swano's Separate Statement is GRANTED. The request to compel answers to Question No. 5 is DENIED. The parties shall meet and confer about a second deposition session of Plaintiff Carolina Berenice Lopez to occur within sixty (60) days. The deposition shall be limited only to Questions 1 through 4 and 6 through 8.

The request for sanctions against Plaintiff Carolina Berenice Lopez is DENIED.

The request to compel Plaintiff Carolina Berenice Lopez's counsel of record, Jacob Brown, is GRANTED but in the reduced amount of \$500. Counsel Jacob Brown is ordered to pay those sanctions to Defendant William Christopher Swano and his counsel of record, Theresa T. Nguyen of MacDonald & Cody LLP, within thirty (30) days.

Defendant William Christopher Swano to give notice.

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action." (Code Civ. Proc., § 2017.010.)

As Defendant alludes to in his papers, the Complaint alleges that: "As a direct and proximate result of said acts and omissions on the part of the Defendants and each of them, Plaintiffs were hurt, and physically injured, sustaining medical bills, loss of earnings/earnings capacity, pain, suffering, loss of enjoyment of life and other damages, as well as substantial property damage, loss of use, towing, storage and other associated charges and damages, and will continue to sustain such damages in the future." (Compl., Attachment to Complaint, Second Cause of Action-General Negligence, p. 1, bottom of the page, the last paragraph.)

Given those allegations, the Court finds that except for Question 5, which asks about LOE-related information, all other questions are relevant to this action. The Court disagrees with Plaintiff that Questions 1 through 4 and 6 through 8 concern

LOE. Whether Plaintiff has been able to work and how long she is able to do so while sitting is relevant to her allegation that she was physically injured. In other words, such questions seek information that is reasonably calculated to lead to admissible evidence.

For those reasons, the Court GRANTS Defendant's request to compel Plaintiff's response to Questions 1 through 4 and 6 through 8 only, but DENIES the request to compel Plaintiff's response to Question 5.

Defendant's request for a wholly new deposition is DENIED. To the extent Defendant seeks a Volume III deposition, he must file the appropriate motion or obtain a stipulation from Plaintiff as required by Code of Civil Procedure section 2025.610.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production [at a deposition], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.410, subd. (d).)

The Court finds that sanctions pursuant to that statute is warranted against Plaintiff's counsel because: "Unless the objecting party demands that the taking of the deposition be suspended to permit a motion for a protective order under [Code of Civil Procedure] Sections 2025.420 and 2025.470, the deposition shall proceed subject to the objection." (Code Civ. Proc., § 2025.460, subd. (b).) In this case, Plaintiff's counsel, Jacob A. Brown, directed his client not to answer without seeking to first suspend the deposition in order to permit the filing of a protective order motion.

The Court finds that sanctions are not warranted against Plaintiff because she was instructed by her counsel not to answer the relevant deposition questions.

Defendant's notice of motion seeks sanctions of \$2,255, claiming that it represents the costs of the future deposition of Plaintiff. (Motion, Nguyen Decl. ¶ 17.) However, the aforementioned statute does not allow sanctions to cover future deposition costs; instead, it allows sanctions for a party's unsuccessful opposition to the motion without substantial justification. The Court also notes that defense counsel fails to explain how she arrived at the requested amount. does not provide how those sanctions were calculated.

The Court finds that sanctions of \$500 against Plaintiff's counsel reasonable given that this motion was not complex.

For those reasons, Defendant William Christopher Swano's Motion to Compel Plaintiff Carolina Berenice Lopez's Deposition Answers and Further Deposition; Request for Monetary Sanctions in the Amount of \$2,255.00 Against Plaintiff and Counsel of Record, Jointly and Severally is GRANTED in part and DENIED in part as follows.

The request to compel Plaintiff Carolina Berenice Lopez to appear for deposition and answer Question Nos. 1 through 4, and 6 through 8 in Defendant William Christopher Swano's Separate Statement is GRANTED. The request to compel answers to Question No. 5 is DENIED. The parties shall meet and confer about a second deposition session of Plaintiff Carolina Berenice Lopez to occur within sixty (60) days. The deposition shall be limited only to Questions 1 through 4 and 6 through 8.

The request for sanctions against Plaintiff Carolina Berenice Lopez is DENIED.

The request to compel Plaintiff Carolina Berenice Lopez's counsel of record, Jacob Brown, is GRANTED in the reduced amount of \$500. Counsel Jacob Brown is ordered to pay those sanctions to Defendant William Christopher Swano and his counsel of record, MacDonald & Cody LLP, within thirty (30) days.